

REGULATORY STATE AND QUASI JUDICIAL INSTITUTIONS

WHY THE REGULATORY STATE → SOURCE, FUNCTION AND DECISIONAL → REGULATORY CYCLE AND SEPARATION → NATURAL JUSTICE AND DELEGATED-POWER → REGULATOR, TRIBUNAL, COMMISSION AND → REGULATOR POWER, APPEALABILITY AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

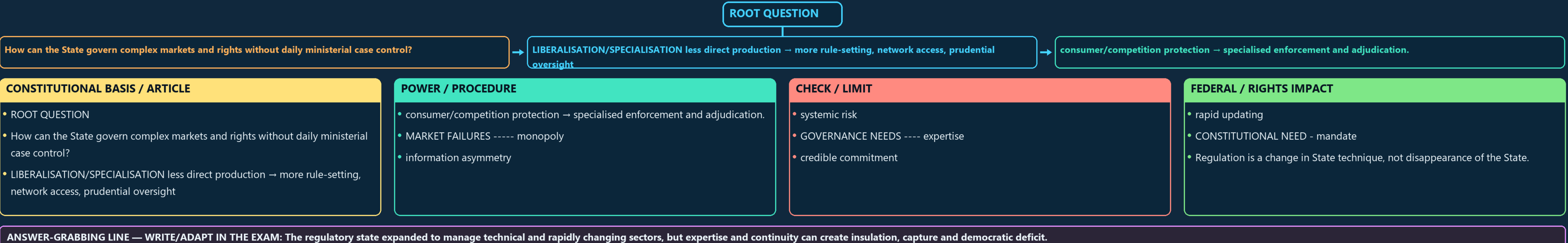
Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 WHY THE REGULATORY STATE EMERGED

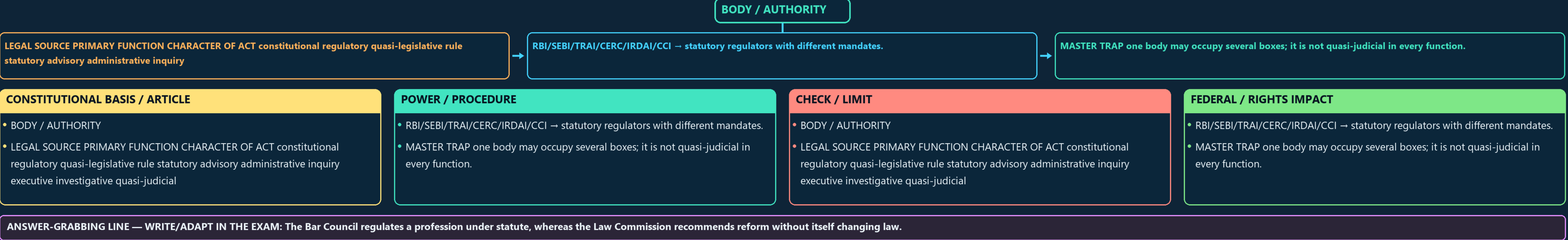
WHY THE REGULATORY STATE EMERGED ROOT QUESTION HOW CAN THE STATE GOVERN COMPLEX MARKETS AND RIGHTS LIBERALISATION/SPECIALISATION LESS DIRECT PRODUCTION MORE RULE-SETTING, NETWORK ACCESS, PRUDENTIAL OVERSIGHT CONSUMER/COMPETITION PROTECTION SPECIALISED ENFORCEMENT AND ADJUDICATION MARKET FAILURES ----- MONOPOLY



01

STAGE 01 SOURCE, FUNCTION AND DECISIONAL CHARACTER

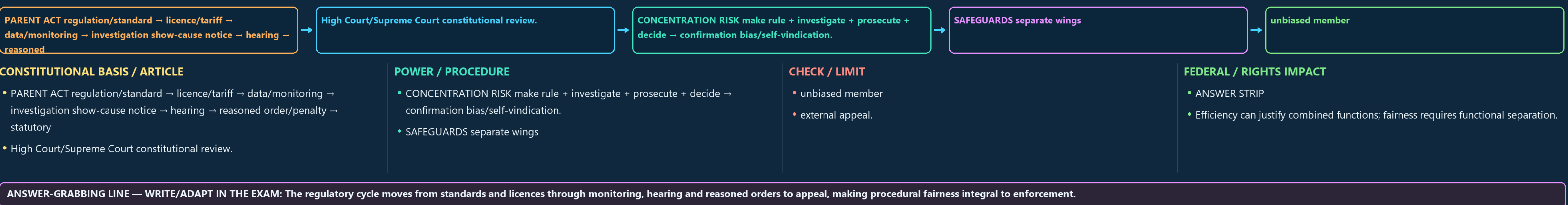
SOURCE, FUNCTION AND DECISIONAL CHARACTER LEGAL SOURCE PRIMARY FUNCTION CHARACTER OF ACT CONSTITUTIONAL REGULATORY STATUTORY REGULATORS WITH DIFFERENT MANDATES MASTER TRAP ONE BODY MAY OCCUPY SEVERAL BOXES; IT



02

STAGE 02 REGULATORY CYCLE AND SEPARATION PROBLEM

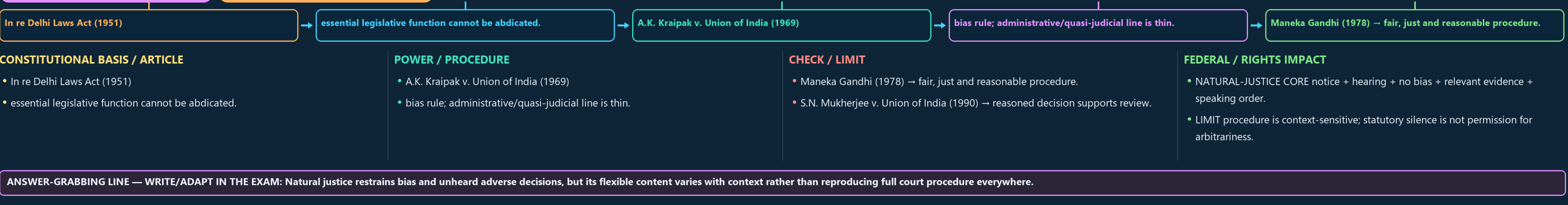
REGULATORY CYCLE AND SEPARATION PROBLEM PARENT ACT REGULATION/STANDARD INVESTIGATION SHOW-CAUSE NOTICE REASONED ORDER/PENALTY STATUTORY APPEAL HIGH COURT/SUPREME COURT CONSTITUTIONAL REVIEW. CONCENTRATION RISK MAKE RULE + INVESTIGATE + PROSECUTE + CONFIRMATION BIAS/SELF-VINDICATION.



03

STAGE 03 NATURAL JUSTICE AND DELEGATED-POWER CASES

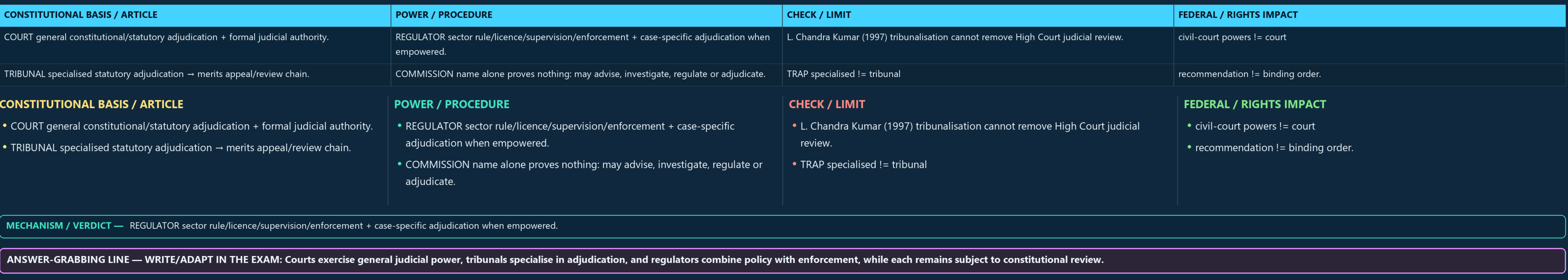
NATURAL JUSTICE AND DELEGATED-POWER CASES IN RE DELHI LAWS ACT (1951) ESSENTIAL LEGISLATIVE FUNCTION CANNOT BE ABDICATED. A.K. KRAIPAK V. UNION OF INDIA (1969) BIAS RULE; ADMINISTRATIVE/QUASI-JUDICIAL LINE IS THIN. MANEKA GANDHI (1978) FAIR, JUST AND REASONABLE PROCEDURE. S.N. MUKHERJEE V. UNION OF INDIA (1990)



04

STAGE 04 REGULATOR, TRIBUNAL, COMMISSION AND COURT

REGULATOR, TRIBUNAL, COMMISSION AND COURT COURT GENERAL CONSTITUTIONAL/STATUTORY ADJUDICATION + FORMAL JUDICIAL AUTHORITY. TRIBUNAL SPECIALISED STATUTORY ADJUDICATION MERITS APPEAL/REVIEW CHAIN. REGULATOR SECTOR RULE/LICENCE/SUPERVISION/ENFORCEMENT + CASE-SPECIFIC ADJUDICATION WHEN EMPOWERED. COMMISSION NAME ALONE PROVES NOTHING MAY ADVISE, INVESTIGATE, REGULATE OR ADJUDICATE. L. CHANDRA KUMAR (1997) TRIBUNALISATION CANNOT REMOVE HIGH COURT



05

STAGE 05 REGULATOR POWER, APPEALABILITY AND JUDICIAL CONTROL

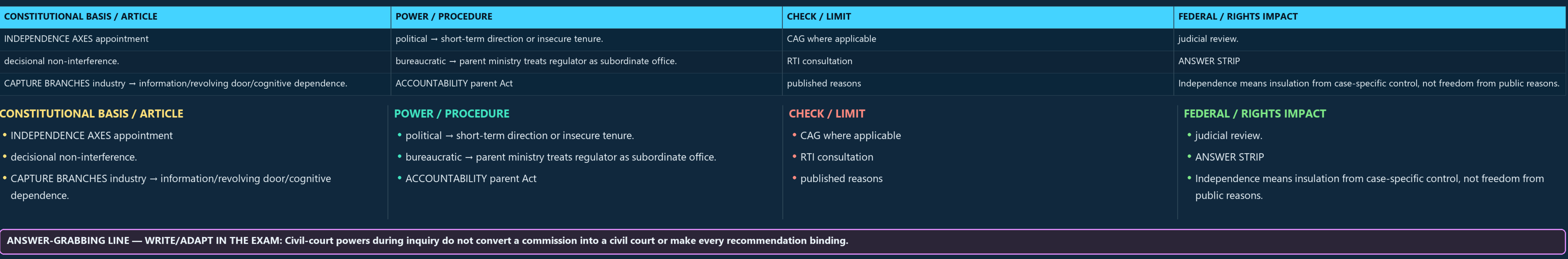
REGULATOR POWER, APPEALABILITY AND JUDICIAL CONTROL COMPETITION COMMISSION OF INDIA V. SAIL (2010) STATUTORY STAGE AND CHARACTER DETERMINE HEARING/APPEALABILITY NOT EVERY CCI STEP IS A FINAL QUASI-JUDICIAL ORDER. CELLULAR OPERATORS ASSOCIATION OF INDIA V. TRAI (2016) REGULATION MUST REMAIN WITHIN STATUTE AND SATISFY NON-ARBITRARINESS. APPEAL CHAIN EXAMPLES SUPREME COURT QUESTION OF LAW.



06

STAGE 06 INDEPENDENCE, ACCOUNTABILITY AND CAPTURE

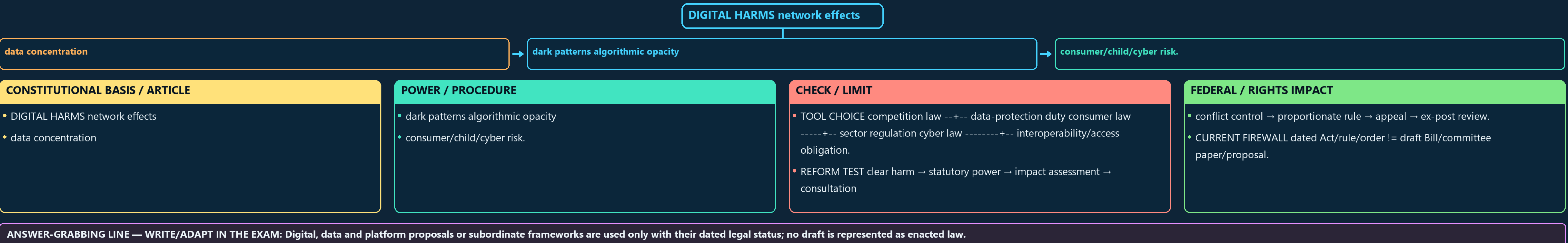
INDEPENDENCE, ACCOUNTABILITY AND CAPTURE INDEPENDENCE AXES APPOINTMENT DECISIONAL NON-INTERFERENCE CAPTURE BRANCHES INDUSTRY INFORMATION/REVOLVING DOOR/COGNITIVE DEPENDENCE SHORT-TERM DIRECTION OR INSECURE TENURE. PARENT MINISTRY TREATS REGULATOR AS SUBORDINATE OFFICE. ACCOUNTABILITY PARENT ACT



07

STAGE 07 DIGITAL AND PLATFORM REGULATION WITH LEGAL-STATUS FIREWALL

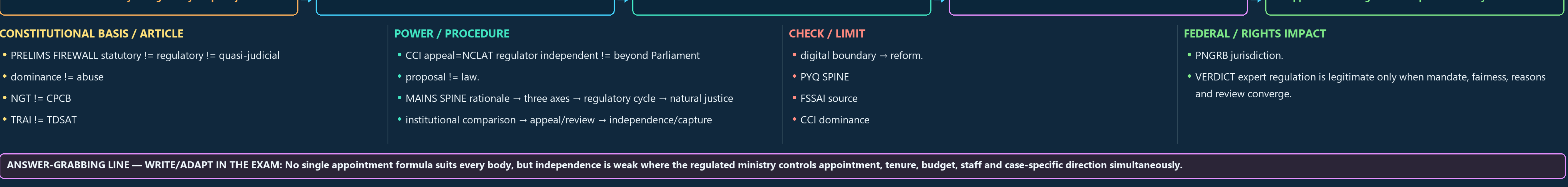
DIGITAL AND PLATFORM REGULATION WITH LEGAL-STATUS FIREWALL DIGITAL HARMS NETWORK EFFECTS DATA CONCENTRATION DARK PATTERNS ALGORITHMIC OPACITY CONSUMER/CHILD/CYBER RISK. TOOL CHOICE COMPETITION LAW ----- DATA-PROTECTION DUTY CONSUMER LAW REFORM TEST CLEAR HARM STATUTORY POWER



08

STAGE 08 UPSC SYNTHESIS: CALIBRATED INDEPENDENCE UNDER LAW

UPSC SYNTHESIS CALIBRATED INDEPENDENCE UNDER LAW PRELIMS FIREWALL STATUTORY CCI APPEAL=NCLAT REGULATOR INDEPENDENT BEYOND PARLIAMENT MAINS SPINE RATIONALE THREE AXES REGULATORY CYCLE



E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT SECTORS ARE TECHNICALLY COMPLEX STANDARDS NEED FREQUENT UPDATING INDIVIDUAL LICENSING/ENFORCEMENT DECISIONS ARE NUMEROUS POLITICAL COMMITMENT MUST SURVIVE SHORT CYCLES; AND EXPERTISE MUST BE CONCENTRATED. TRANSPARENT CONSULTATION AND RESPONSE-TO-COMMENTS CONFLICT AND ASSET DISCLOSURE

